

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

-----X			
INTERNATIONAL	LONGSHOREMEN’S	:	
ASSOCIATION,		:	
	Complainant,	:	
		:	
v.		:	FMC Docket No.: 22-12
		:	
GATEWAY TERMINALS, LLC;		:	
CHARLESTON STEVEDORING COMPANY,		:	
LLC; PORTS AMERICA FLORIDA, INC.;		:	
CERES MARINE TERMINALS, INC.; AND SSA		:	
ATLANTIC, LLC.		:	
	Respondents.	:	
-----X			

**CONSENT MOTION TO EXTEND THE TIME PERIOD FOR DISCOVERY
AND TO FILE BRIEFS ON JURISDICTIONAL ISSUES**

Complainant International Longshoremen’s Association (ILA) hereby moves for a five (5) day extension of the time period for the Parties to file briefs regarding jurisdictional issues due to a scheduling error of the ILA’s attorneys. All Respondents have consented to this request.

Good cause exists for the ILA’s requested extension. The ILA’s attorneys received a briefing schedule from the United States Court of Appeals for the Fourth Circuit in *South Carolina State Ports Authority v. NLRB*, 4th Cir. No. 23-1059. The ILA’s brief was due May 5, 2023.

The due date for the ILA’s brief in this proceeding was mistakenly calendared as May 15, 2023. An extension of five days will allow the ILA attorneys to complete its jurisdictional brief as originally, though mistakenly, intended.

Specifically, the ILA asks that the deadlines in the ALJ’s briefing schedule be extended as follows:

May 15, 2023: Complainant's brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show).

June 5, 2023: Respondent's opposition brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show).

June 19, 2023: Complainant's reply brief and responses to proposed findings of fact.

WHEREFORE, the ILA respectfully request that the Commission extend the deadlines to for the Parties to file briefs on jurisdiction by five (5) days.

Dated: May 10, 2023
New York, New York

MAZZOLA MARDON, PC

By: /s/John P. Sheridan
John P. Sheridan
Nicholas M. Graziano
26 Broadway, 17th Floor
New York, NY 10004
(212) 425-3240

*Counsel for Petitioner International
Longshoremen's Association*

CERTIFICATE OF SERVICE

I hereby certify that the foregoing pleading was provided to Respondents' counsel of record by email on this 10th day of May, 2023.

Matthew Thomas
BLANK ROME LLP
1825 Eye Street N.W.
Washington, DC 20006
(202) 772-5971
MThomas@BlankRome.com

Keith B. Letourneau
BLANK ROME LLP
717 Texas Avenue, Suite 1400
Houston, Texas 77002
(713) 402-7640
KLetourneau@BlankRome.com

Counsel for Respondents
Gateway Terminals, LLC; Charleston
Stevedoring Company, Ports America
Florida, Inc.; Ceres Marine Terminals,
Inc.; and SSA Atlantic, LLC

Dated: May 10, 2023
New York, New York

/s/Nicholas M. Graziano
Nicholas M. Graziano